

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



February 7, 2022

The Honorable Sam Ohta
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Yki Vallery
CDCR No: V66989
Case No: BA175507-02
Date of Sentence: January 7, 2005

Dear Honorable Sam Ohta:

The purpose of this letter is to provide the court with the authority to resentence inmate Yki Vallery, V66989, pursuant to Penal Code (PC) Section 1170.03, Subdivision (a)(1), based upon his exceptional conduct while incarcerated. PC Section 1170.03, Subdivision (a)(1), provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court consider and possibly recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules and regulations, as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but many have also demonstrated a commitment to their rehabilitation through voluntary participation in various self-help programs, vocational and educational programs, and have displayed a dedicated participation in programs such as Prison Industry Authority, Division of Rehabilitative Programs, and the Integrated Substance Use Disorder Treatment program, to name a few.

Only the Warden of the institution where the inmate is incarcerated can make a recommendation to the Secretary for consideration for potential resentencing referral. Once a recommendation is received, the inmate's case factors are compiled and then thoroughly reviewed by the Director of Adult Institutions. Only a select few cases are approved by the Secretary and referred to the court.

Inmate Vallery has received one Rules Violation Report since being received to the California Department of Corrections and Rehabilitation (CDCR) on February 3, 2005, however, he has remained disciplinary free since December of 2006. Inmate Vallery is currently assigned as a Yard Worker and is not currently assigned to any self-help groups. Inmate Vallery has previously received numerous certificates and two laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

Having reviewed the enclosed documentation it appears that inmate Vallery's sentence warrants the attention of the court. Pursuant to PC Section 1170.03, Subdivision (a)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office